

plete rewriting of the section to meet these constitutional objections could the bill be passed.⁴⁸ Yet almost none of those who had decried § 2 as undertaking impermissibly to make the national courts tribunals of concurrent jurisdiction for the punishment of state-law offenses expressed similar objections to § 1, later § 1979.⁴⁹ One of the most

⁴⁸ Mr. Shellabarger proposed the amendment to § 2, *id.*, at 477, to meet the constitutional objections which the original form of that section had evoked. See *id.*, at 478, App. 187-190, 313. Numerous members of the majority party thereupon withdrew their opposition to the bill. See *id.*, at 514, App. 187-190, 231, 313-315. The form of the second section as it was finally enacted is, in relevant part, substantially that of R. S. § 1980, 42 U. S. C. § 1985: "If two or more persons in any State . . . conspire . . . for the purpose of depriving, either directly or indirectly, any person or class of persons of the equal protection of the laws, or of equal privileges and immunities under the laws; or for the purpose of preventing or hindering the constituted authorities of any State . . . from giving or securing to all persons within such State . . . the equal protection of the laws; [and] if one or more persons engaged therein do, or cause to be done, any act in furtherance of the object of such conspiracy, whereby another is injured in his person or property, or deprived of having and exercising any right or privilege of a citizen of the United States, the party so injured or deprived may have an action for the recovery of damages, occasioned by such injury or deprivation, against any one or more of the conspirators." See 17 Stat. 13. Mr. Shellabarger emphasized that the purpose of the change was to make the gist of the offense a deprivation of *equality* of rights, not a deprivation of rights alone. Cong. Globe, 42d Cong., 1st Sess. 478.

⁴⁹ Representative Poland had argued the unconstitutionality of the original § 2 on the ground that it sought to extend federal *protection* to private persons and property, whereas the Fourteenth Amendment guaranteed only *equal* protection, leaving the States free to protect or not to protect whatever interests they chose so long as the protection afforded was non-discriminatory. The amendment of § 2 met this objection, and Mr. Poland supported the bill, finding no cause for concern in the language of § 1. *Id.*, at 514. For other congressmen who opposed the initial form of § 2 but found no constitutional impediment to enactment of § 1, see *id.*, at 578-579 (Trumbull), App. 86 (Storm), 150-154 (Garfield), 187-190 (Willard). Farnsworth objected to even the amended form of § 2, but voiced no adverse